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MARD revises regulations on feed management

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FAIRS Subject Report

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Report Highlights:

The Government of Vietnam (GVN) published Decree 39/2017/ND-CP on April 4th, 2017, replacing Decree 08/2010/ND-CP (dated February 2, 2010) on animal feed management, and revoking a number of articles in Decree 66/2016 (dated July 1st, 2016) regulating requirements for investment and trade for plant quarantine and plant protection, plant varieties; common wild livestock; animal husbandry, aquaculture, and foods. This Decree came into force on May 20, 2017, and its development was tracked closely by U.S. industry including veterinary drug manufacturers due to significant changes in Vietnam's policies regulating usage of antibiotics in animal feeds. This report provides an unofficial translation of Decree 39/2017/ND-CP.

Policy:

On April 4, 2017, the GVN issued Decree 39/2017/ND-CP, replacing Decree 08/2010/ND-CP (dated February 2, 2010) on animal feed management. The draft of this Decree was notified to the World Trade Organization (WTO) on May 11, 2016 as G/SPS/N/VNM78. The U.S. Government had no comments on this draft.

Below are several highlights summarizing key points in Decree 39/2017:

- Decree 39/2017 covers the management of both animal and aquaculture feeds.
- Article 6 of Decree 39/2017 regulates the management principles for animal feeds containing antibiotics. All animal feed products containing antibiotics must be checked for quality inspection. Reports on the importation and consumption of previously imported animal feeds containing antibiotics are required to be submitted to the competent authorities. Animal feeds containing specified approved antibiotics for growth promotion for livestock and poultry are permitted to be circulated until December 31, 2017. Animal feeds containing antibiotics for disease prevention for young livestock and poultry are allowed for circulation until the end of December 31, 2020. As a result, this means that antibiotics will not be allowed to be used in animal feed after December 31, 2020.
- Article 11 of the Decree 39/2017 regulates the registration dossier and procedures for field trials and accreditation of new animal and aquaculture feeds. Accordingly, the registration dossier for field trials of new animal and aquaculture feeds includes: a) a written request for the field trial of new animal and aquaculture feeds; b) a written field trial statement; and, c) a written explanation on conditions of the field trial agency of animal and aquaculture feed.
- Article 12, Chapter IV of the Circular 39/2017 regulates the conditions for animal and aquaculture feeds to be circulated in Vietnam. The registration dossier for animal and aquaculture feeds to be permitted for circulation in Vietnam is stated in Point 4 of Article 12 for both domestic and imported animal and aquaculture feeds. For imported animal and aquaculture feeds, the registration dossier includes:
 - A written request for the accreditation of the quality of imported animal and aquaculture feeds to be circulated in Vietnam;
 - Certificate of free sale or equivalent documents of imported animal and aquaculture feeds as granted by the competent state authorities of the country of origin;
 - Copy of one of the following certificates: ISO, GMP, HACCP or relevant documents from the manufacturers;
 - Product information provided by the manufacturers, including: composition, safety and quality standards of animal feeds, uses, and manual;
 - Announcement of applicable standards of organizations and individuals registering imported animal and aquaculture feeds for circulation in Vietnam; product sub-label in Vietnamese language in accordance with current regulations;
 - Field trial results on quality and product safety indicators issued by a laboratory appointed by the competent state agencies or recognized by regional/international organizations of quality certification, or from those appointed and accepted by MARD;

- Product labels (certified by suppliers or importers).
 - All documents must be originals or certified true-copies accompanied by a Vietnamese translation that are certified by the organizations or individuals registering for import. If the originals are not in English, the Vietnamese translation must be notarized.
- Article 19 of the Decree 39/2017 regulates procedures for the quality inspection and certification for imported-exported animal and aquaculture feeds. The registration dossier for quality inspection and certification of imported animal and aquaculture feeds must include: a) a written request for a quality inspection/certification ; b) copies of the following documents certified by the importing organizations and individuals: Purchasing contracts, packing lists, invoices, certificates of analysis, product labels of manufacturers and announcements of applicable standards of importers; and c) submitted reports on the importation and consumption status of previously-imported animal feeds containing antibiotics.
 - According to Article 23 of Decree 39/2017, MARD shall issue a list of banned substances in animal and aquaculture feeds and publish a list of animal and aquaculture feeds permitted for circulation in Vietnam. It also issues a list of antibiotics allowed for use in animal feeds for growth promotion for livestock, poultry, as well as stipulations for the production and use of animal feeds containing antibiotics for prevention and treatment for animals and poultry.

Post Comment: MARD plans to issue a new circular to guide the implementation of Decree 39/2017. A draft of this new circular has been published on MARD's website for public comments until July 15, 2017. Certain U.S. industry organizations have obtained the draft and are reportedly preparing comments for submission to the Ministry.

Until new implementing guidelines are issued, current animal and aquaculture feed management regulations in Vietnam are still valid. For more details, please refer to the following GAIN reports: Circular 66/2011/TT-BNNPTNT (GAIN report [VM4039](#)), Circular 50/2014/TT-BNNPTNT (GAIN report [VM5048](#)), Circular 29/2015/TTBNNPTNT (GAIN report [VM5067](#)), and Circular 6/2016/TT-BNNPTNT (GAIN report [VM6038](#)). Additionally, since December 28, 2016, MARD has removed some additional steps in the registration process for agricultural substances, including animal and aquaculture feeds that had been added under an earlier circular (please refer to GAIN report [VM7006](#)). Those procedures previously required further evaluation to register new animal and aquaculture feeds by MARD's Department of Science and Technology and the Ministry's Legal Department under Circular 20/2014 (please see GAIN report [VM4045](#)). This revision sought to shorten the required time for carrying out the registrations under directions issued by the new MARD Minister.

Should U.S. exporters have any questions regarding this new Decree 39/2017, please email: aghanoi@fas.usda.gov.

Below is an unofficial translation of the Decree 39/2017/ND-CP dated April 4, 2017.

THE GOVERNMENT

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness

No.: 39/2017/NĐ-CP

Hanoi, 4th April 2017

DECREE

On management of animal and aquaculture feeds

Pursuant to the Law on Organization of the Government dated 19th June 2015;

Pursuant to the Law on Fisheries dated 26th November 2003;

Pursuant to the Law on Standards and Technical Regulations dated 29th June

Pursuant to the Law on Product and Goods Quality dated 21st November 2007;

Pursuant to the Investment Law dated 26th November 2014;

Pursuant to the Law on Enterprises dated 26th November 2014;

Pursuant to the Law on Animal Health dated 19th June 2015;

Pursuant to the Ordinance on Animal Breeds dated 24th March 2004;

Per the proposal of the Minister of MARD, the Government issues the Decree on the Management of animal feeds and, aquaculture feeds.

Chapter I

GENERAL PROVISIONS

Article 1. Scope of regulation

This Decree provides conditions for the trade; use; testing; certification, inspection and state management in the domain of commercial animal and aquaculture feeds.

Article 2. Subjects of application

This Decree applies to domestic and foreign organizations and individuals engaged in animal and aquaculture feeds in the territory of Vietnam.

Article 3. Interpretation of terms

In this Decree, the following terms are construed as below:

1. Animal and aquaculture feed means product animals eat or drink (or supplemented into rearing environment for aquaculture feeds) which is fresh, live, or has gone through a processing or preservation stage, including nutritional and functional feeds in the forms of: Materials, individual feed; complete compound feed, concentrated feed,

supplementary feed, feed additives and additional products for the rearing environment (for aquaculture feeds) in creation of natural feeds, stability of rearing environment, and enhancing efficiency of feed usage.

a) Commercial animal and aquaculture feed is a product manufactured for exchange and trading in the market.

b) Self-mixed animal and aquaculture feed for internal consumption is an animal and aquaculture feed product mixed by the individual or organization itself per their specific need, with no exchange or trading in the market.

c) Conventional animal and aquaculture feed is an agricultural product or aquaculture product, or industrial processed product that has been previously used by farmers such as: paddy, rice, bran, corn, potatoes, cassava, distillers, brewers' grains, cassava pulp, pineapple pulp, molasses, straw, grass, shrimp, crab, fish, and others.

d) New animal and aquaculture feed means feed imported or produced in Vietnam for the first time which contains new active ingredients not yet assayed in Vietnam.

dd) Complete compound feed means mixtures of different feed materials combined and based on a certain formula to supply sufficient nutrients for maintaining the life and productivity of an animal in each stage of its growth or production cycle.

e) Concentrated feed means a mixture of animal and aquaculture feed materials which contain nutrients exceeding the animals' need and are used for mixing with other materials to constitute a complete compound feed;

g) Supplementary feed means individual feed or a mixture of different materials added to feed rations or supplemented into the rearing environment (for aquaculture feeds) to balance essential nutrients for animals;

h) Animal and aquaculture feed material or individual feed means feed, which supplies one or more nutrients in the feed rations of animals.

i) Animal and aquaculture feed additive means a substance with or without nutritious value added to animal and aquaculture feed during processing and treatment, or added to the water environment during the rearing period (for aquaculture feed) to enhance productivity or maintain and improve a certain quality of animal and aquaculture feed.

k) Carrier means substance used for mixing with active ingredients in a premix without affecting to animal health.

l) Premix containing antibiotics means a mixture of no more than two types of antibiotics which are allowed for use in animal and poultry feeds for growth promotion with the total amount of antibiotics not exceeding 20 percent.

2. Main substance in animal and aquaculture feed means a substance determining the usage and nature of products promulgated by MARD for each type of product.

3. Safety criteria for animal and aquaculture feed means standards that can affect food safety in animal and aquaculture feed specified in respective technical regulations or equivalent documents promulgated by the MARD.

4. Livestock means cattle, poultry, honey bees, silkworm, and fishery animals raised by humans.

5. Young livestock, poultry include the following objectives:
 - a) Swine: From one to 60 days old or from birth up to 25 kg;
 - b) Chicken, ducks, goose, quails, rabbits: From one to 21 days old;
 - c) Calves, goats, sheep: Under six months old.
6. Food safety for animal and aquaculture feed means necessary conditions and methods to ensure that these feeds do not cause any harm to animal health, livestock product consumers, and the environment.
7. Animal and aquaculture feed trading means activities of producing, processing, trading, import, and export of animal and aquaculture feeds.
 - a) Animal and aquaculture feed production means the performance of one, several, or all activities of production, processing, portioning, packing, preservation, and transportation of animal and aquaculture feeds.
 - b) Animal and aquaculture feed processing means process of performing one or all stages of animal and aquaculture feed production for products at the request of ordering parties.
8. Trade name of an animal and aquaculture feed means the trade name of the product to distinguish it from other animal and aquaculture feeds in the market.

Article 4. State management on animal and aquaculture feeds

1. To formulate plans for the production development and use of animal and aquaculture feeds.
2. To promulgate and organize the implementation of legal documents on the management of animal and aquaculture feeds, production processes, standards, technical regulations and mechanisms, and incentive policies of animal and aquaculture feed production.
3. To manage the field trials and accreditation of new animal and aquaculture feeds.
4. To collect and manage information and data on animal and aquaculture feeds.
5. To research and apply scientific and technology advances to activities in the domain of animal and aquaculture feeds.
6. To invest and develop field trials and accreditation systems to meet requirements on production, trading and state management of quality of animal and aquaculture feeds.
7. To provide trainings, re-trainings and issue certificates to human resources performing the state-management of animal and aquaculture feeds.
8. To propagate and disseminate knowledge and experience in animal and aquaculture feed production, management, and use.
9. To examine and inspect compliance of state regulations on animal and aquaculture feeds.
10. To implement international cooperation in the domain of animal and aquaculture feeds.

Article 5. State policies on animal and aquaculture feeds

1. The Government encourages all social and economic sectors to invest in the research, training, industrial and agricultural extension, and transfer of scientific and technical advances on nutrition and animal and aquaculture feed processing.
2. To prioritize investment and encourage all economic sectors to develop and produce, employ and use domestic animal and aquaculture feed resources and other policies effectively: policies on land funding and priority of bank loans for plantation, harvesting, preservation, production, processing of material resources for animal and aquaculture feeds domestically.
3. To invest and popularize investment to enhance the capacity of field trials and accreditation activities to serve the examination, inspection, observance of animal and aquaculture feed quality. To encourage developing socialization of public services in the domain of animal and aquaculture feeds.

Article 6. Principles on the management of animal feeds containing antibiotics

1. Antibiotics are not permitted to be used in aquaculture feeds.
2. Antibiotics used in animal feeds for growth promotion must be in the list of antibiotics permitted for use in animal feeds.
3. Antibiotics used in animal feeds for the treatment of livestock, poultry and disease prevention in young livestock, poultry must be in the allowed list of veterinary drugs permitted for circulation in Vietnam and under the prescription of veterinarians who are licensed in the treatment and prevention of diseases for animals according to the Law on Animal Health.
4. Production and use of animal feeds containing antibiotics must fit to each different type of livestock, its purpose, and period of use to ensure no antibiotic residue exceeding the allowed limitation in livestock products and no effect on antibiotic resistance in the treatment of humans and animals.
5. Only up to two kinds of antibiotics are allowed to be used in one animal feed product.
6. Feed mills which produce animal feeds containing antibiotics for disease prevention and treatment in livestock, poultry must have veterinarians who are licensed for the prevention and treatment of diseases for animals according to the Law on Animal Health.
7. Animal feeds containing antibiotics must be clearly specified its name and antibiotics indication, dosage, manual and time to stop using on packing or attached documents.

Chapter II

CONDITIONS ON TRADING OF ANIMAL AND AQUACULTURE FEEDS

Article 7. Conditions on commercial animal and aquaculture feed producers and processors

Organizations, individuals producing and processing animal and aquaculture feeds must satisfy all the following conditions:

1. To have appropriate production, processing locations not near sources of waste, toxic

chemicals, animal lodges, and aquaculture farms.

2. To have a production plant with walls or fixed fences to isolate and separate from the outside.
3. To have reports on the assessment of environmental impacts or plans for environmental protection according to laws and regulations on environmental protection.
4. Requirements of the premises of workshops and facilities:
 - a) To arrange facilities of workshops under the “one-way” principle; where the production line must be arranged separately between input materials and output products to minimize potential cross-contamination;
 - b) To have appropriate production lines for each type of animal and aquaculture feed; to have palettes to store materials and finished products (unless technical solutions are applied on the floor and workshops to ensure good ventilation and anti-humidity);
 - c) Places of storage of materials for animal and aquaculture feeds must be separated as advised by producers;
 - d) Feed production and processing units which produce animal feeds containing antibiotics are required to have a separate mixture places to minimize potential cross-contamination;
 - dd) To have measuring devices to control quality and to ensure accuracy as under the law on metrology;
 - e) To have solutions on equipment, tools (such as: fan, filter, magnet, etc.) to control impurities (sand, metals) for input materials;
 - g) To have solutions for firefighting and fire prevention under law, for prevention against rats, pests, other insects;
 - h) To have appropriate ventilation systems to eliminate dust and treatment systems to handle waste to avoid contamination for products and to protect the environment under law;
5. Technical staff with intermediate or higher degrees in one of the following subjects: animal husbandry, livestock – veterinary, veterinary, food science and technology, biotechnology (for animal feeds); or aquaculture, biology or food science (for aquaculture feeds).
6. Having its own or hiring a laboratory to analyze the quality of animal and aquaculture feed in the process of production and processing.
MARD shall promulgate specific technical regulations and specify regulations on technical requirements to the criteria stated in this Article.

Article 8. Conditions on animal and aquaculture feed dealers

Animal and aquaculture feed dealers must satisfy all of the following conditions:

1. Animal and aquaculture feeds for sales and in storage must be isolated from plant protection chemicals, fertilizers, and other toxic chemicals.

2. To have preservation devices for animal and aquaculture feeds as advised by producers, suppliers.
3. To have solutions to prevent rats, birds, and other pests.

Article 9. Conditions on animal and aquaculture feed importers

Importers of animal and aquaculture feeds shall have or hire storage to ensure animal and aquaculture feeds meeting all requirements of quality, environment protection as recommended by the feed mills;

Chapter III

FIELD TRIALS FOR NEW ANIMAL AND AQUACULTURE FEEDS

Article 10. Conditions and content of field trial of animal and aquaculture feeds

1. Content of field trials of animal and aquaculture feeds
 - a) Animal and aquaculture feeds which are subject to field trial must be new animal and aquaculture feeds.
 - b) New animal and aquaculture feeds are not subject to field trial if they are outcomes of research accredited as technical advances by MARD or field trialed and circulated in countries having mutual recognition agreements with Vietnam in the field trial process of recognition of new animal and aquaculture feeds.
 - c) MARD shall issue guidelines for the field trial process of new animal and aquaculture feeds and shall be responsible for mutual agreements with other countries which have trade or exchange of animal and aquaculture feeds with Vietnam on field trial activities of recognition of animal and aquaculture feeds.
2. Conditions for field trial agencies for animal and aquaculture feeds

A field trial agency of animal and aquaculture feeds must satisfy all the following conditions:

- a) Having its own or hiring location, facilities, equipment suitable to assay each kind of animal feeds: cages, ponds, mews, rafts, tanks suitable to the field trial arrangement.

Field trial agencies for aquaculture feeds must have water resources which meet quality requirements, have separate systems of water supply and drainage, and have ponds to contain sewage to ensure the inspection of indicators of environment and aquaculture diseases.

- b) The person in charge of technical issues must have a diploma or higher degree in livestock or livestock-veterinary or biotechnology (for field trial agencies of animal feeds) or a degree in aquaculture, biology (for field trial agencies of aquaculture feeds).

Article 11. Handling order, registration dossier and procedure of new animal and aquaculture feed field trials and accreditation

1. Organizations, individuals registering for the field trial of new animal and aquaculture feeds must submit one set of dossiers to the MARD.
2. The registration dossier for a field trial of new animal and aquaculture feeds includes:

a) A written request for the field trial of new animal and aquaculture feeds in Form 1 of the Appendix attached in this Decree;

b) A written field trial statement;

c) A written explanation on conditions of the field trial agency of animal and aquaculture feeds according to the criteria specified in Clause 2, Article 10 of this Decree.

3. Within no more than five working days upon receipt of registration dossier, MARD shall be responsible to examine dossiers and send a written notice to the registration unit, highlighting the unsatisfactory contents for supplementation and completion.

Within no more than 30 working days from receipt of a valid dossier, MARD shall have the responsibility to establish a council or conduct examinations, approve the field trial content, and issue a decision on the approval of field trial content (in Form 02 in the Appendix attached to this Decree). In the cases of rejection, MARD should clearly state the reason in writing.

4. After the field trial is finished, organizations, individuals producing animal and aquaculture feeds must submit reports to MARD.

Within 15 working days upon receipt of the field trial reports, MARD shall establish specialized scientific councils to evaluate the field trial results and issue decisions on the accreditation of new animal and aquaculture feeds (in Form 03 in the Appendix attached in this Decree). In the cases of rejection, MARD should clearly state the reason in writing.

5. Inspection of field trial activities

a) Forms and levels of inspection: MARD must establish a group composed of representatives from the relevant competent authorities and scientists to inspect on-site at least one time during the field trial process of a new animal and aquaculture feeds.

b) Inspection contents: Conditions on facilities of the field trial agency; the field trial content as an approved plan.

Chapter IV

ANIMAL AND AQUACULTURE FEEDS PERMITTED FOR CIRCULATION IN VIETNAM

Article 12. Animal and aquaculture feeds permitted for circulation in Vietnam

1. Animal and aquaculture feeds permitted for circulation in Vietnam are feeds recognized by MARD for their conformity to the appropriate standards and technical regulations (if any), published on the electronic portal of MARD.

The circulation period of animal and aquaculture feeds in Vietnam is five years from the confirmation date. Six months before the expiration date, organizations and individuals can re-register the feed with MARD.

2. Animal and aquaculture feeds must satisfy all the following conditions to be permitted for circulation in Vietnam:

a) To announce applicable quality standards according to regulations on the establishment and application of standards and to have quality suitable to published quality standards. To announce regulations on the conformity in accordance with the appropriate

national technical regulations (if any);

b) Each animal and aquaculture feed with an announced quality standard is only allowed an appropriate commercial name;

c) New animal and aquaculture feeds: After MARD issues a decision on the recognition of the new animal and aquaculture feeds, if the organizations or individuals wish to circulate new feed products in Vietnam, they must implement regulations under Point a, Clause 2 of this Article. Field trial results from recognition dossiers of new animal feeds can be used for the publication of applicable standards or technical regulation conformity.

3. For circulation in Vietnam, it is not necessary to register animal and aquaculture feeds for internal consumption or conventional animal and aquaculture feeds, but all requirements of the appropriate national technical regulations and standards must be satisfied.

MARD shall announce a list of conventional animal and aquaculture feeds permitted for circulation in Vietnam together with regulations on minimum quality standards and appropriate national technical regulations (if any) to apply in production.

4. The registration dossier for animal and aquaculture feeds to be permitted for circulation in Vietnam includes:

a) For domestic animal and aquaculture feeds:

A written request for the registration of animal and aquaculture feeds to be permitted for circulation in Vietnam (in Form 04 in the Appendix attached in this Decree);

Copy of the announcement of national technical regulation conformity on conditions of animal and aquaculture feed producing and processing units;

Original or notarized true-copy of contracts for animal and aquaculture feed processing (for organizations, individuals registering animal and aquaculture feeds processed at feed mills which announced their national technical regulation conformity on the conditions of production and processing of animal and aquaculture feeds);

Original or notarized true-copy of the following documents: applicable standards, announcement of receipt of national technical regulation conformity, decision on the recognition of new animal and aquaculture feeds (if available);

Original or notarized true-copy of field trial results of safety and quality indicators of products within their appropriate applicable standards and national technical regulations issued by the appointed or recognized field trial agencies by MARD. In cases where indicators of the safety and quality of products have not been confirmed by any appointed, recognized field trial agencies, MARD shall temporarily appoint an appropriate field trial agency;

Product labels (which was certified by feed mills).

b) For imported animal and aquaculture feeds:

A written request for the accreditation of quality of imported animal and aquaculture feeds (in Form 05 in the Appendix attached in this Decree);

Certificate of free sale or equivalent documents of imported animal and aquaculture feeds as granted by the competent state authorities of the country of origin;

Copy of one of the following certificates: ISO, GMP, HACCP, or relevant documents from manufacturers;

Product information provided by the manufacturers, including: composition, safety and quality standards of animal feeds, utility, manual;

Announcement of applicable standards of organizations, individuals registering imported animal and aquaculture feeds for circulation in Vietnam; sub-label of the products in Vietnamese as regulations;

A field trial result sheet of quality and product safety indicators issued by laboratories appointed by the competent state agencies or recognized by the regional, international organizations of quality certification or appointed, accepted by MARD;

Product labels (certified by suppliers or importers).

Documents are originals or certified true-copies accompanied by a Vietnamese translation thereof certified by the organizations, individuals registering for import. If the originals are not in English, their Vietnamese translation must be notarized.

For new animal and aquaculture feeds, the registration process is promulgated under Article 11 of this Decree.

5. Re-registration dossier of animal and aquaculture feeds permitted for circulation in Vietnam includes:

- a) A written request for the re-registration of animal and aquaculture feeds permitted for circulation in Vietnam (in Form 06 of the Appendix attached in this Decree);
- b) Standard edition of the announcement of applicable standards and announcement of receipt of technical regulation conformity (if available), which can be originals or copies certified by manufacturers;
- c) Product labels (certified by producers, suppliers or importers).

6. The order for handling the registration dossier of animal and aquaculture feeds permitted for circulation in Vietnam (including re-registration dossier):

- a) Organizations, individuals registering for the circulation of animal and aquaculture feeds in Vietnam must submit one set of the registration dossier to the MARD.
- b) Within no more than five working days upon receipt of the registration dossier, MARD shall examine the dossier and send a written notice to the registration unit, highlighting the unsatisfactory contents for supplementation, completion.

Within no more than 20 working days upon receipt of a valid dossier (for a new registration) or no more than 10 working days (for re-registration), MARD shall evaluate the contents of the dossier and issue a decision on the certification of animal and aquaculture feeds permitted for circulation in Vietnam (in Form 07 of the Appendix attached in this Decree) and publish its decision on the electronic portal of MARD. In the cases of rejection, MARD should clearly state the reason in writing.

7. Changes of information of animal and aquaculture feeds permitted for circulation in Vietnam:

Organizations, individuals can only change information of animal and aquaculture feeds permitted for circulation in Vietnam if that change has no impact on the product's quality, including:

- a) Information of animal and aquaculture feeds permitted for circulation in Vietnam can

be changed by the organizations, individuals themselves, including: address, telephone number, facsimile number, registration individuals; name of importers; color, size, forms of products; packaging specifications.

When organizations, individuals change the above-mentioned information, notification thereof should be reported to MARD in writing and followed by an e-mail (if available), so that MARD shall update and publish the information on its electronic portal.

b) Changes of information of animal and aquaculture feeds permitted for circulation in Vietnam which must be approved by MARD, include: name, address of manufacturers, name of products, applicable standards, and symbols (trade name) of products.

Organizations, individuals requesting changes of information for animal and aquaculture feeds must submit one set of dossier to MARD. The dossier must include:

A written request for changing information of animal feed and aquaculture feeds (in Form 08 of the Appendix attached in this Decree);

Copies of standard edition of announcement of applicable standards and announcement of receipt of technical regulation conformity (if available); product labels certified by producers or importers;

Original or notarized true copy of confirmation letter of the change in content from producers (for imported animal and aquaculture feeds);

Notarized true copy of Enterprise Registration Certificate or letter of certification from competent state authorities (in cases where the name of producers or importers is changed).

Within no more than five working days upon receipt of the request for change of information of animal and aquaculture feeds, MARD shall examine the dossier and send a written notice to the registration unit indicating the unsatisfactory contents for the supplementation, completion.

Within no more than 15 working days upon receipt of the valid dossier, MARD shall issue a decision on the recognition of the change of information of animal and aquaculture feeds permitted for circulation in Vietnam (in Form 09 of the Appendix attached in this Decree) and shall publish its decision on its electric portal. In the cases of rejection, MARD should clearly state the reason in writing.

Changes of information of customized animal and aquaculture feeds can be recorded by MARD based on national technical standards, regulations and demand of the market.

8. Animal and aquaculture feeds used for livestock, poultry and aquaculture production:

a) Organizations, individuals registering animal and aquaculture feeds permitted for circulation in Vietnam or requesting for information change shall submit dossiers to MARD.

b) The ordering for handling the registration of animal and aquaculture feeds used for livestock, poultry and aquaculture production which are permitted for circulation in Vietnam is similar to other regulations for animal and aquaculture feeds in this Decree.

9. Suspension of circulation of commercial animal and aquaculture feeds shall be applied in the following situations:

- a) Animal and aquaculture feeds containing prohibited substances in livestock and aquaculture production.
- b) A violation of animal and aquaculture feeds is detected during three consecutive tests of a quality indicator or after two tests on a safety indicator.
- c) When an announcement on suspension of product circulation is issued by registration unit.

MARD shall issue a written announcement and publish it on its electric portal of animal and aquaculture feeds which are suspended for circulation.

Animal and aquaculture feeds are suspended for circulation per Items a, b, Clause 9 in this Article. If the registration unit wants to re-circulate the feeds, the application procedure should be the same as the initial registration.

For animal and aquaculture feeds which are suspended for circulation per Item c, Clause 9 of this Article within its circulation expiration, if the registration unit wishes to re-circulate the feeds, a written notice needs to be submitted to MARD for its announcement and publication.

Article 13. Import of animal and aquaculture feeds not yet permitted for circulation in Vietnam

1. To be introduced at trade fairs, exhibitions or research, to be used as samples at laboratories:

- a) Organizations, individuals wishing to import animal and aquaculture feeds for use at trade fairs, exhibitions or to research, for use as samples at laboratories should submit one set of dossiers to MARD.

- b) A registration dossier for importing animal and aquaculture feeds for the purpose of introduction at trade fairs, exhibitions, includes:

A written request for importing animal and aquaculture feeds for the purpose of introduction at trade fairs, exhibitions (in Form 10 of the Appendix attached in this Decree);

A confirmation letter on organization or attendance to trade fairs, exhibitions in Vietnam.

- c) A registration dossier for importing animal feeds to be used as samples at laboratories, includes:

A written request for importing animal and aquaculture feeds as samples for laboratories (in Form 11 of the Appendix attached in this Decree);

Contracts of analysis services between a local laboratory or company with a laboratory or a company or competent authority of animal and aquaculture feeds of the country of origin, of which the imported products must be declared as being free-trade goods.

- d) A registration dossier for importing animal and aquaculture feeds for research purposes includes:

A written request for importing animal and aquaculture feeds for research purposes (in Form 11 in the Appendix attached in this Decree);

Research plan needs to be enclosed.

dd) Within no more than 15 working days upon receipt of the valid dossier, MARD shall reply in writing confirming acceptance of the import (in Form 12 of the Appendix attached in this Decree). In cases of disagreement, MARD shall issue a response letter in writing, clearly indicating the reason for rejection.

2. To process, produce for re-export purpose:

Organizations, individuals importing animal and aquaculture feeds for processing, production for re-export under agreement with overseas companies must submit one set of dossiers to MARD, including:

A written request for importing animal and aquaculture feeds for processing, production for re-export (in Form 13 of the Appendix attached in this Decree);

Agreements on processing and production of animal and aquaculture feeds for re-export in accordance with provisions of Vietnamese law on importing goods for production; processing for the purpose of re-export.

Within 15 working days upon receipt of dossier for importing animal and aquaculture feeds for processing, producing for the purpose of re-export under the signed contracts with foreign parties, MARD shall issue a written acceptance or unacceptance of the import. In cases of rejection, the reasons should clearly be stated in writing.

Article 14. Export of animal and aquaculture feeds

1. Animal and aquaculture feeds for export and domestic use purposes must satisfy all quality requirements of animal and aquaculture feeds permitted for circulation in Vietnam and requirements of the importing country or importers.
2. Animal and aquaculture feeds produced for export purposes must satisfy all requirements of importing countries, except for prohibited acts of production and trading of animal and aquaculture feeds in Vietnam.

Chapter V

QUALITY INSPECTION FOR ANIMAL AND AQUACULTURE FEEDS

Article 15. Inspection of local animal and aquaculture feeds

1. Objects and content of inspection

a) For commercial animal and aquaculture feeds:

Implementation of regulations on conditions of animal and aquaculture feed mills and traders;

Implementation of publishing applicable standards and the announcement of technical regulation conformity (if available);

Implementation of management measures of quality of animal and aquaculture feeds;

Compliance with regulations on labelling of goods;

Sampling of animal and aquaculture feeds for examination of their conformity with published applicable standards and appropriate technical regulations. Of which, the examination focuses on the safety and quality components of the products.

b) For self-mixed and conventional animal and aquaculture feeds:

Inspection of safety components of animal and aquaculture feeds should be conducted under current regulations on food safety.

2. Inspection authorities: MARD, Provincial Departments of Agriculture and Rural Development.

3. Inspection mode: Regular examination of state authorities must be notified in writing, and an annual inspection of quality can only be conducted no more than one time, unless an extraordinary inspection is required when there are signs of violation. The extraordinary inspection of quality of animal and aquaculture feeds at location of feed mills, traders and consumers of animal and aquaculture feeds is only conducted under the decision of a competent authority without prior notice.

Article 16. Inspection of imported and exported animal and aquaculture feeds

Registration for the inspection and accreditation of quality of imported animal and aquaculture feeds which are recalled or returned are compulsory. For exported animal and aquaculture feeds, the inspection and accreditation are conducted under requirements of importing countries.

1. Objects and content of inspection:

a) For imported animal and aquaculture feeds:

To inspect the import dossier under provision in Clause 1 Article 19 in this Decree;
To inspect the actual quantity, weight, packing, labelling, expiry date, origin and other appearance criteria of the products;
To take product samples for the inspection of food safety and quality conformity of products.

b) For recalled or returned animal and aquaculture feeds:

To inspect reasons for the recall and return of animal and aquaculture feeds;
To inspect the packing, labelling, expiry date and appearance of products;
To take product samples for quality examination.

c) For exported animal and aquaculture feeds:

To inspect the announcement documents of quality and technical regulation conformity (if available);
To inspect the packing, labelling, expiry date and appearance of products;
To analyze the quality and other requirements (if any) of importing companies or countries.

2. Inspection authorities:

State competent authorities and state organizations appointed by MARD are organizations certifying the quality and conformity of imported and exported animal and aquaculture feeds (hereafter called “appointed organization”). These appointed organizations implement some phases of inspection activities as regulated under the appointment decision. Requests, orders, and procedures are implemented under Article 17 in this Decree.

The basis for the capacity assessment for appointed organizations is under provisions on organizations accrediting the conformity of products promulgated or accepted for application by competent state authorities. MARD shall promulgate the inspection process and guidance publicly in writing and shall publish it on its electric portal.

3. Inspection mode: under provision of Article 20 in this Decree.

Article 17. Appointment requirements, orders and procedure

1. Appointed organizations must satisfy all the following conditions:

- a) Appointed by the MARD as an organization of accreditation of technical regulation conformity of animal and aquaculture feeds.
- b) Having the inspection and accreditation process of quality conformity of imported-exported animal and aquaculture feeds which is suitable to each type of animal and aquaculture feeds expertized by the MARD.

2. Order and procedure of appointment:

Organizations accrediting technical regulations of conformity in the domain of animal and aquaculture feeds that wish to join inspection activities, accreditation of quality of imported-exported animal and aquaculture feeds, shall submit one set of dossiers to MARD, including:

- a) A written request for attending the quality inspection, accreditation activities of imported-exported animal and aquaculture feeds (in Form 14 of the Appendix attached in this Decree);
- b) A notarized true copy of decision on appointment as accreditation organization of technical regulation conformity in the domain of animal and aquaculture feeds.
- c) Inspection, accreditation process for quality conformity of imported-exported animal and aquaculture feeds for each type of animal and aquaculture feeds respectively shall be conducted by organizations that register for quality inspection and accreditation activities of imported-exported animal and aquaculture feeds.

Within no more than 15 working days upon receipt of valid dossiers, MARD shall examine the dossier, conduct an examination of the actual capacity of the register's facilities (if necessary) and issue the appointment decision (in Form 15 in the Appendix attached in this Decree). In cases of rejection, MARD shall clearly state the reason in writing.

3. Validity of a decision on appointment

- a) Validity of appointment decisions of organizations accrediting quality conformity of imported – exported animal and aquaculture feeds is three years.
- b) Appointed organizations should submit a registration dossier for re-appointment to MARD within three months before the expiry date of the appointment decision, including:

A written request for attending examination, accreditation activities of quality of imported-exported animal and aquaculture feeds (in Form 14 in the Appendix attached in this Decree);

Report on implementation results of inspection, accreditation of quality of imported-exported animal and aquaculture feeds during the previous period (in Form 16 in the Appendix attached in this Decree).

Within no more than seven working days upon receipt of valid dossier, MARD shall evaluate the dossier, conduct an examination of the actual capacity at facilities (if necessary) and issue decision on re-appointment (in Form 15 in the Appendix attached in this Decree). In cases of rejection, MARD shall clearly state the reason in writing.

Article 18. Taking samples and testing animal and aquaculture feeds

1. Taking samples for quality inspection of animal and aquaculture feeds is implemented under provisions on national technical standards (TCVN) or regulations promulgated by MARD. The person in charge of taking samples of animal and aquaculture feeds must be trained and certified by MARD.

2. Quality experiments for the purpose of state management of animal and aquaculture feeds is only admitted according to test methods at laboratories appointed by MARD. MARD shall decide on test methods to be applied in cases where test methods have not been appointed or unified.

MARD shall issue the appointment process of laboratories for animal and aquaculture feeds and public detailed guidelines on its electronic portal.

3. Experiment grounds: based on the quality and safety criteria of animal and aquaculture feeds regulated in the respective technical regulations issued by the government; and in announced applicable standards of producers, suppliers or based on detailed requests in writing by the competent government authorities.

Article 19. Order, procedure of quality inspection, certification of imported-exported animal and aquaculture feeds

1. Registration dossier of quality inspection, certification of imported animal and aquaculture feeds:

a) A written request for quality inspection, certification in Form 17 of the Appendix attached in this Decree;

b) Copies of the following documents certified by import organizations, individuals: Purchasing contracts, packing list, invoice, certificate of analysis, product labels of manufactures; announcement of applicable standards of importers;

c) Submitted reports on the importation and consumption status of previously imported animal feeds containing antibiotics as in Form 18 in the Appendix attached in this Decree.

2. Registration dossier for quality inspection, certification of exported animal and aquaculture feeds:

a) A written request for quality inspection, certification (three copies) in Form 17 in the Appendix attached in this Decree with required criteria for examination, certification of quality;

b) Notarized true copy of the following documents: Purchasing contracts, documents of quality announcement.

3. Registration dossier for quality inspection, certification of re-called, returned animal and aquaculture feeds:

a) A written request for quality inspection, certification (three copies) in Form 17 in the Appendix attached in this Decree;

b) Notarized true copy of the following documents: Purchasing contract, certificate of quality of the goods before export (if any), documents of re-calling or

returning clearly stating the reasons.

4. Order for handling registration dossier of quality inspection, certification of imported -exported animal and aquaculture feeds

- a) The registering company submits one set of registration dossiers for quality inspection, certification to inspection authorities.
- b) Upon receipt of dossiers, within three working days, the inspection authorities shall evaluate and guide companies to provide additional contents;

Within three working days, upon receipt of valid dossiers, the inspection authorities shall check and certify the registration dossier of quality inspection, informing companies of inspection content, time and venue of the inspection.

Article 20. Regime of quality inspection of imported animal and aquaculture feeds

1. Exemption from quality inspection of imported animal and aquaculture feeds in the following cases:

- a) Animal and aquaculture feeds for temporary import for re-export;
- b) Animal and aquaculture feeds in transit, transshipment;
- c) Animal and aquaculture feeds in bonded warehouses;
- d) Animal and aquaculture feeds as samples for trade fairs, exhibitions;
- dd) Animal and aquaculture feeds as analysis samples for laboratories;
- e) Animal and aquaculture feeds as samples for experiment, field trials, and accreditation.

2. Exemption from quality examination with validity (not applicable for animal feeds containing antibiotics)

- a) Inspecting profile, no sensory testing and no samples for conformity evaluation for six months.
- b) This inspection regime is only applied for imported consignments which satisfy all the following conditions: Imported consignments contains the same animal and aquaculture feeds from the same producers, by the same importers with certificates of quality assessment (in Form 19 of the Appendix attached in this Decree) of five consecutive imported consignments under normal inspection regime or three consecutive imported consignments under a time-limited reduced inspection regime within a period not exceeding 12 months.
- c) Within the exemption period of quality inspection, state authorities or appointed organizations of monitoring goods under free quality inspection can conduct random or extraordinary inspections upon the detection of signs of violation of a product's quality. If the goods do not meet quality requirements, necessary remedies shall be implemented to consignments in question and a proposal to the competent government authorities shall be made to terminate the exemption of quality inspection regime at the time and switch to a stringent inspection regime.
- d) Organizations, individuals importing animal and aquaculture feeds that satisfy the above-mentioned requirements must submit their dossiers to MARD, including:

A written request for an exemption of quality inspection of animal and aquaculture feeds with deadlines (in Form 20 of the Appendix attached in this Decree);

Certificates of quality assessment of five qualified consecutive consignments under a normal inspection regime; or three qualified consecutive consignments under a time-limited reduced inspection regime (copies certified by importers).

Within no more than 10 working days upon receipt of valid dossier, MARD shall reply in writing to importing organizations and individuals about the exemption of quality inspection with a deadline (in Form 21 in the Appendix attached in this Decree) and shall publish on its electronic portal; in cases of rejection, MARD shall clearly state the reason in writing.

Importing organizations/individuals are responsible to send a certified true copy of documents of application for a time limit quality inspection exemption to appointed organizations for certifying the inspection exemption in the registration documents for quality certification for each of imported consignments (in Form 17 of the Appendix attached in this Decree) as a condition for the custom declaration of goods.

3. Time-limited reduced inspection (not applicable for animal and aquaculture feeds containing antibiotics)

a) Type of inspection: Check the profile and conduct a sensory examination to evaluate the conformity of the goods by checking information in profile and on labels or in accompanied technical documents; integrity, forms, colors of goods. The applicable period for reduced inspection regime is 12 months. Samples may be taken in cases where goods are not consistent with their profiles, having unsafe signs and quality issues such as mold, damp, packing not intact, forms, colors different from its description, or having any signals that may affect the safety, quality of products or for a random inspection according to monitoring process of quality of goods. If the goods do not satisfy requirements of quality, necessary measures shall be carried out for violating consignments and a proposal for termination of time-limited reduction inspection at the time should be submitted to competent state authorities and switch to a strict inspection regime.

b) This inspection regime is applicable to imported consignments which satisfy the following conditions:

Animal and aquaculture feeds produced from same manufacturer and imported by same importer with a quality certificates (in Form 19 in the Appendix attached in this Decree) of three consecutive imported consignments under a normal inspection regime not exceeding 12 months earlier;

Feed safety and quality certified by competent authorities of countries which have mutual agreements with Vietnam on activities of quality inspection of animal and aquaculture feeds; or by certified and accredited laboratories by MARD.

c) The importing organization, individuals of animal and aquaculture feeds satisfying a time-limited reduced inspection requirements must submit one dossier set to MARD directly or by mail, including:

A written request for applying a time-limited reduced inspection regime (in Form 20 in the Appendix attached in this Decree);

A certificate of quality of three consecutive consignments which have met requirements under normal inspection regime (certified copy by importing organizations, individuals) or certification of safety and quality satisfaction from competent authorities of

countries which have mutual agreements with Vietnam on activities of quality inspection of animal and aquaculture feeds or by foreign laboratories accredited/recognized by MARD (original or certified true copy).

Within no more than 10 working days upon receipt of a valid dossier, MARD shall issue acceptance documents of applying a time-limited reduced inspection regime (in Form 21 in the Appendix attached in this Decree) and shall publish on its electronic portal; in cases of rejection, MARD shall clearly state the reason in writing.

Importing organizations, individuals shall have the responsibility to send a certified copy of notification of the time-limited reduced quality inspection regime to the appointed organizations to implement the inspection as regulated in Point a, Clause 4 of this Article.

4. Normal inspection regime

- a) Type of inspection: Examine profiles, conduct sensory assessments, and sample for analysis of at least one safety standard and one quality standard in published applicable standards or national technical regulations to ensure the inspection of safety and quality of the inspected goods. For animal feeds containing antibiotics, all antibiotics in products must be checked.

Inspection authorities, appointed organizations identify specific targets and have responsibilities and result of inspection and assessment of safety and quality of animal and aquaculture feeds.

- b) This inspection regime shall be applied to all imported animal feed consignments which do not fall into regulations under Clauses 1, 2, 3, 5 of this Article.

5. Strict inspection regime

- a) Type of inspection: Examine profiles, conduct sensory assessments, and sample all consignments to analyze at least 50 percent of safety components in national technical regulations and at least 50 percent of quality components in published applicable standards and other components (if any) as requested by MARD in writing. The strict inspection regime is applied consecutively three times of import.

- b) This inspection regime is applied to imported consignments in the following cases:

A previous importation which did not satisfy requirements of safety and quality as stipulated;

Imported goods are in the list of animal and aquaculture feeds with high risks of food safety issued by MARD or having origin from countries with high risks for safety to human, animals, and environment warned by MARD;

MARD documents requesting strict inspection when having detected goods circulated in the market which did not satisfy quality inspection requirements or warning documents about unsafe factors to human, animals, environment of relevant domestic and foreign organizations, individuals are available.

Article 21. Recall and disposal of animal and aquaculture feeds of inferior quality

- 1. When government competent authorities issue a decision on recall of animal and aquaculture feeds, feed dealers are obligated to announce to their customers in order to cease their use and trade activities of the recalled feeds and implement a recall for all the products

to a disposal location as required by the state competent authorities. For the amount of animal and aquaculture feeds which cannot be recalled, it is required to have a sufficient reason/explanation and an approval from the government's competent authorities and feed dealers shall have responsibilities to compensate any damages that may occurred.

2. Government competent authorities must establish a council to supervise the implementation for the recall and disposal of animal and aquaculture feeds of inferior quality which are subject to recall and disposal according to regulations on goods quality and environment; must publish on electronic portal of the Ministry of Agriculture and Rural Development's and Provincial Departments of Agriculture and Rural Development where animal and aquaculture feeds of inferior quality are subject to recall.

Article 22. Funding for animal and aquaculture feed management activities

1. The state budget to ensure and arrange annual recurring expenses of state authorities in charge of management duties of animal and aquaculture feeds is managed under current law on decentralization of state budgets.

2. Funds can be raised from participation, contribution of local and overseas organizations, individuals and other legitimate collection sources.

Budgeting, management and use of state budgets for management activities on animal and aquaculture feeds shall be implemented under Law on State Budget.

CHAPTER VI

RESPONSIBILITIES OF GOVERNMENT AUTHORITIES, ORGANIZATIONS, INDIVIDUALS IN THE DOMAIN OF ANIMAL AND AQUACULTURE FEEDS

Article 23. Responsibilities of government authorities of animal and aquaculture feeds

1. The Government shall perform the unified state management of animal and aquaculture feeds.

2. MARD shall:

a) Assume the prime responsibility for and coordinate with: concerned ministries and branches in formulating plans, planning and policies on animal and aquaculture feed development and use nationwide;

b) Elaborate and promulgate or submit to competent authorities for promulgation, and organize the implementation of legal documents on animal and aquaculture feeds;

c) Build national standards and national technical regulations on animal and aquaculture feeds;

d) Stipulate the minimum quantity of norms to be printed in published applicable standards;

dd) Manage the evaluation of field trials and certification of new animal and aquaculture feeds;

e) Collect and manage information and data on animal and aquaculture feeds;

g) Issue a list of banned substances in animal and aquaculture feeds and publish a list of animal and aquaculture feeds permitted for circulation in Vietnam;

h) Issue a list of antibiotics allowed for use in animal feeds for growth promotion for livestock, poultry. Guide the production and use of animal feeds containing antibiotics for disease prevention and treatment for animals;

i) Plan, direct examination and inspection, and handle violations in animal and

aquaculture feed production, trading and use;

- k) Propagate and disseminate legal documents on animal and aquaculture feeds;
- l) Implement international cooperation in the domain of animal and aquaculture feeds;
- m) Manage quality of animal and aquaculture feeds as per regulations;
- n) Conduct research, apply advance technology science into activities in the domain of animal and aquaculture feeds;
- o) Train, re-train and issue certificates to human resources performing the state management of animal and aquaculture feeds.

3. Ministries, ministerial agencies shall in their scope of duties and power have responsibilities to coordinate with MARD in the state management of animal and aquaculture feeds.

4. Provincial-level People's Committees shall:

- a) Formulate plans on animal and aquaculture feed development and use in localities;
- b) Direct and guide effective use of animal and aquaculture feeds without polluting the environment;
- c) Promulgate incentive policies for local enterprises to raise quality and competitiveness of animal and aquaculture feeds. Direct local functional agencies in formulating and implementing local programs to raise productivity, quality and competitiveness of animal and aquaculture feeds;
- d) Propagate, disseminate, and guide laws and provide information on the quality of animal and aquaculture feeds for producers, traders and consumers;
- dd) Work out plans, examine, inspect and handle violations in the domain of animal and aquaculture feeds in localities.

Article 24. Responsibilities organizations, individuals producing animal and aquaculture feeds

- 1. To announce national technical conformity for conditions of production and processing of animal and aquaculture feeds and archive one set of dossier at facilities.
- 2. To announce applicable standards and national technical conformity (if any) for animal and aquaculture feeds according to regulations and archive one set of dossier at facilities.
- 3. To have suitable production and quality control process. To record and keep production diaries for at least two years after the expiration of products.
- 4. To test and keep test results and samples of materials and products which meet quality control requirements during production process and access to handle violation later. Keep test results for two years and keep and preserve samples for 30 days from the expiry date of the products.
- 5. To display quality information on labels or packing or attached documents, which must specify main substances, antibiotics (if any) under regulations of MARD.
- 6. To submit to examination, inspection of production conditions and quality of animal and aquaculture feeds under law.
- 7. Only to produce upon receipt of certificate of animal and aquaculture feed producers

granted by the competent MARD authorities.

8. Only to produce animal and aquaculture feeds permitted for circulation in Vietnam under regulations in Chapter IV in this Decree.

9. To be responsible before the law for quality of animal and aquaculture feeds from feed mills: to handle recall or disposal of animal and aquaculture feeds of inferior quality, safety and to compensate damage caused to husbandry farmers.

10. On the 25th day of each month, to report on the production of animal and aquaculture feeds to MARD and report randomly when required by competent state authorities of activities related to animal and aquaculture feeds.

Article 25. Responsibilities of organizations, individuals trading, importing animal and aquaculture feeds

1. Only to trade, import animal and aquaculture feeds which are permitted for circulation in Vietnam under regulations in Chapter IV of this Decree.

2. To check the origin, validity, labels or standard/regulation-conformity stamps (if any) of products and documents on animal and aquaculture feed quality.

3. To take quality control measures to ensure the quality of animal and aquaculture feeds as advised by producers.

4. To publicly publish animal and aquaculture feed prices and submit for a price inspection under law.

5. To submit to examination, inspection of animal and aquaculture feed business conditions and quality under law. To handle, recall or dispose animal and aquaculture feeds of inferior safety, quality under law and compensate for damage caused to husbandry farmers.

6. Organizations, individuals importing premix containing antibiotics must report on the import and consumption status of the products to competent state authorities of MARD in order to manage the business and use of the products for the right purposes and procedures.

Article 26. Responsibilities of organizations, individuals using animal and aquaculture feeds

1. To comply with regulations of state and guidelines of suppliers of animal and aquaculture feeds on transportation, storage, preservation, and use. No use of banned substances in livestock husbandry.

2. To submit to the examination, inspection of animal and aquaculture feed quality.

3. To coordinate to dispose animal and aquaculture feeds and livestock products of inferior safety and quality under law.

4. To keep diaries of the use of animal feeds containing antibiotics for prevention, treatment under law.

Article 27. Responsibilities of organizations of accreditation of conformity in the domain of animal and aquaculture feeds

1. To be responsible before law and appointed competent authorities of accreditation results of conformity in the domain of animal and aquaculture feeds.

2. To report to the competent authorities on result of accreditation on a monthly basis or

as required.

3. To keep and preserve samples for at least 90 days from the announcement date of accreditation result of conformity in the domain of animal and aquaculture feeds for organizations, individuals.
4. To keep a profile of accreditation of conformity in the domain of animal and aquaculture feeds for at least five years.
5. To submit to the examination, inspection of accreditation activities of conformity in the domain of animal and aquaculture feeds to competent state authorities.

Article 28. Responsibilities of field trial agencies of animal and aquaculture feeds

1. To be responsible for field trial results of animal and aquaculture feeds.
2. To keep dossier of field trial of animal and aquaculture feeds for at least three years.
3. To submit to the examination, investigation about field trial activities of animal and aquaculture feeds of state competent authorities.

CHAPTER VII

IMPLEMENTATION PROVISIONS

Article 29. Transitional provisions

1. Within 18 months from the effective date of this Decree, commercial animal and aquaculture feed mills must register under regulations of this Decree.
2. Animal feeds containing antibiotics for growth promotion for livestock, poultry are permitted for circulation until the end of 31st December 2017. Animal feeds containing antibiotics for disease prevention for young livestock, poultry are allowed for circulation until the end of 31st December 2020.
3. Registration dossiers of circulation of animal and aquaculture feeds in Vietnam, re-registration dossier and registration dossier of information change of animal and aquaculture feeds permitted for circulation in Vietnam which are received by MARD before the effective date of this Decree will be handled under provisions of Decree No. 08/2010/ND-CP dated 5th February 2010 on management of animal feeds. Regulations on trade names of animal and aquaculture feeds will be immediately applied to all new registration and re-registration from the effective date of this Decree.
4. Within 18 months from the effective date of this Decree, animal and aquaculture feed mills and dealers shall have responsibilities to re-announce trade names of animal and aquaculture feeds which are not complied with regulations at Point b, Clause 2, Article 12 in this Decree.
5. Animal and aquaculture feeds permitted for circulation in Vietnam by MARD before the effective date of this Decree are permitted for circulation for five years from the recognition date.
6. Organizations of accreditation of quality conformity of imported-exported animal and aquaculture feeds appointed by MARD before the effective date of this Decree remain valid at appointment decision.

Article 30. Effect

1. This Decree takes effect on 20th May 2017.
2. This Decree replaces the Government's Decree No. 08/2010/ND-CP dated 5th February 2010 on animal feed management.
3. Abolition of Articles 12, 13, 14 of the Government's Decree No. 66/2016/ND-CP dated 1st July 2016 regulating on requirements for investment and trade for plant quarantine and plant protection, plant varieties; common wild livestock; animal husbandry, aquaculture and foods.

Article 31. Implementation responsibility

1. MARD shall implement this Decree.
2. Ministers, heads of ministerial-level agencies, heads of government-attached agencies, chairpersons of provincial-level People's Committees, and concerned organizations and individuals shall implement this Decree.

Recipients:

- Secretary Committee of Central Party;
- Prime Minister, Vice Prime Ministers;
- The ministries, ministerial-level agencies under the Government;
- People's Councils, People's committees of centrally-run provinces and cities;
- Central Office and all departments of Vietnamese Party;
- Office of General Secretary of Vietnamese Party;
- Office of Vietnam's President;
- Office of National Assembly of Vietnam;
- Council of minorities and all Committees of the National Assembly;
- The Supreme People's Procuracy;
- Supreme People's Court of Vietnam;
- National Financial Monitoring Committee;
- National Audit Office;
- Vietnam Bank for social policies;
- Vietnam Development Bank;
- Vietnam Fatherland Front Central Committee;
- Central Office of Vietnamese mass organizations;
- The Government Office; Minister of Government Office; Vice Ministers of Government Office; Assistant of Prime Minister; General Director of Government Website, Departments of Agriculture and Rural Development of centrally-run provinces and cities, Government Gazette;
- Kept archives: Office

ON BEHALF OF THE GOVERNMENT
PRIME MINISTER
 (Signed)

Nguyen Xuan Phuc

Appendix

(Promulgated in conjunction with the Decree 39/2017/ND-CP dated April 4th, 2017 of the Government Office)

Form 1	Application for registration of official testing of new animal and aquaculture feeds
Form 2	Decision for approval of content outline for testing of new animal and aquaculture feeds
Form 3	Decision on accreditation of new animal and aquaculture feeds
Form 4	Application for registration of new locally produced animal and aquaculture feeds to be circulated in Vietnam
Form 5	Application for registration of imported animal and aquaculture feeds to be circulated in Vietnam
Form 6	Application for re-registration of animal and aquaculture feeds to be circulated in Vietnam
Form 7	Document certifying animal and aquaculture feeds allowed to be circulated in Vietnam
Form 8	Application for certifying of adjusted information of animal and aquaculture feeds
Form 9	Document certifying for information adjustment of animal and aquaculture feeds
Form 10	Application for import of animal aquaculture feeds to be introduced in the exhibitions and trade fairs
Form 11	Application for import of animal and aquaculture feeds to be researched in the laboratories
Form 12	Document certifying for imported animal and aquaculture feeds to be introduced in the exhibitions , trade fairs, and to be researched in the laboratories
Form 13	Application for import of animal and aquaculture feeds to be produced or processed for export.
Form 14	Application for registration for inspection and accreditation of quality of locally produced and imported animal and aquaculture feeds
Form 15	Decision of appointing certifying organizations for quality conformity of imported or exported animal and aquaculture feeds

Form 16	Report on quality inspection and accreditation of imported or exported animal and aquaculture feeds
Form 17	Registration for quality inspection and accreditation
Form 18	Report of consumption status of imported animal feed consignments containing antibiotics
Form 19	Quality accreditation paper
Form 20	Application for exemption of inspection of imported animal and aquaculture feeds with limited period of time
Form 21	Document on application of quality inspection exemption and time-limited reduced quality inspection regimes

(Name of Unit):.....

SOCIALIST REPUBLIC OF VIETNAM

No.:.....

Independence - Freedom - Happiness

....., datemonth.....year.....

**APPLICATION FOR REGISTRATION FOR TESTING OF NEW ANIMAL AND
AQUACULTURE FEEDS**

To: (1)

Name of Unit:

Address:

Telephone:.....; Fax:; Email:.....

Organization implementing testing (name, address):
.....

Enterprise registers the testing of following animal and aquaculture feeds:

No.	Names of animal and aquaculture feeds	Volume	Duration of testing	Nature, utility	Form, color	Origin of products
1						
2						
3						
...						

Enterprise commits to fully implement the provisions of current law related to animal feeds.

Director*(Signature and stamp)*

(1) Name of the competent authority

.....(1).

No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM

Independence - Freedom - Happiness

Hanoi, datemonth.....year 20.....

DECISION

**FOR APPROVAL OF OUTLINE OF TESTING NEW ANIMAL AND
AQUACULTURE FEEDS**

..... (2)

Pursuant to the functions, tasks, powers and organizational structure of (1);
Pursuant to the Decree No...../2017/ND-CP dated2017 of Government Office on
animal and aquaculture feed management;

At the proposal of,

DECIDES

Article 1. Approved content of the outline of testing animal and aquaculture feeds (details referred as per attached list).

Article 2. This decision will come into effect from the date of signing.

Article 3. Head of the Office of (1), (organization, individuals registering for testing of animal and aquaculture feeds), organization implementing testing of animal and aquaculture feeds, and heads of relevant units/offices shall be responsible to implement this decision.

Recipients:

**LEADER OF COMPETENT
AUTHORITY**

- As stated in the Article 3

-

- Filing in the office

(1) Name of the competent authority

(2) Leader of the competent authority

.....(1).

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness

No.:...../.....

Hanoi, datemonth.....year 20.....

DECISION

On accreditation of new animal and aquaculture feeds

..... (2)

Pursuant to the functions, tasks, powers and organizational structure of (1);

Pursuant to the Decree No. /2017/ND-CP dated2017 of Government Office on animal and aquaculture feed management;

At the proposal of,

DECIDES

Article 1. Accredited animal and aquaculture feeds named in the attached list as new animal and aquaculture feeds.**Article 2.** This decision will come into effect from the date of signing.**Article 3.** Head of the Office of (1), (organization, individuals registering for testing of animal and aquaculture feeds), organization implementing testing of animal and aquaculture feeds, and heads of relevant units/offices shall be responsible to implement this decision.**Recipients:**

LEADER OF COMPETENT
AUTHORITY

- As stated in the Article 3

-

- Filing in the office

1) Name of the competent authority

2) Leader of the competent authority

(Name of unit, organizations,
individuals):

SOCIALIST REPUBLIC OF VIETNAM
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.....

No.:...../.....

....., datemonth.....year.....

**APPLICATION FOR REGISTRATION OF LOCALLY PRODUCED ANIMAL AND
AQUACULTURE FEEDS APPROVED TO BE CIRCULATED IN VIETNAM**

To: (1)

Name of units, organizations, individuals:

Address:

Code of enterprises:

Telephone:; Fax:; Email:

Requests for registration of the following animal and aquaculture feeds to be approved for
circulation in Vietnam:

No.	Names of animal and aquaculture feeds	Trade name	Number of base standards to be applied	Number of receipt of regulation conformity publication	Date of receipt of regulation conformity publication	Agency of receipt of regulation conformity publication
1						
2						
3						
...						

Enterprise commits to fully implement the provisions of the current law related to
animal and aquaculture feeds.

Name of units, organizations, individuals

(Signature and stamp)

(1) Name of the competent authority

(Name of unit):

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness

No.:...../.....

....., datemonth.....year.....

**APPLICATION FOR REGISTRATION OF IMPORTED ANIMAL AND
 AQUACULTURE FEEDS APPROVED TO BE CIRCULATED IN VIETNAM**

To: (1)

Name of imported units:

Address:

Code of enterprises:

Telephone:; Fax:; Email:

Requests for registration of the following imported animal and aquaculture feeds to be
 approved for circulation in Vietnam:

No.	Names of animal and aquaculture feeds	Nature, utility	Form, Color	Firms, countries of manufacture
1				
2				
3				
...				

Enterprise commits to fully implement the provisions of the current law related to
 animal and aquaculture feeds.

Representative of units, organizations, individuals

(Signature and stamp)

(1) Name of the competent authority

(Name of organizations,
individuals):

No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness

....., datemonth.....year.....

**APPLICATION FOR RE-REGISTRATION OF ANIMAL AND
AQUACULTURE FEEDS TO BE APPROVED FOR CIRCULATION IN
VIETNAM**

To: (1)

Name of organizations, individuals:

Address:

Code of enterprises:

Telephone:; Fax:; Email:

Requests for re-registration of the following animal and aquaculture feeds to be approved
for circulation in Vietnam:

1. For locally produced animal and aquaculture feeds

No.	Names of animal and aquaculture feeds	Trade name	Number of base standards to be applied	Number of receipt of regulation conformity publication	Date of receipt of regulation conformity publication	Agency of receipt of regulation conformity publication	Code of products
1							
2							
3							

2. For imported animal and aquaculture feeds

No.	Names of animal and aquaculture feeds	Nature, utility	Form, Color	Firms, countries of manufacture	Code of products
1					
2					
3					

We commit to fully implement the provisions of the current law related to animal
and aquaculture feeds.

Representative of units, organizations, individuals

(Signature and stamp)

(1) Name of the competent authority

.....(1)
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Regarding on accreditation of animal and
aquaculture feeds approved to be circulated
in Vietnam

Hanoi, datemonth.....year.20.....

To: (2)

Pursuant to the Decree No...../2017/ND-CP dated2017 of Government Office on
animal and aquaculture feed management, and registration dossier for animal and
aquaculture feed approval to be circulated in Vietnam from(2),

..... (1) has opinions as below:

1. Hereby certifies (state specific volume) of animal and aquaculture feeds with below
name to be approved for circulation in Vietnam:

- a) For locally produced animal and aquaculture feeds:

Name of manufacturer:

Address of Headquarter office:

Telephone: Fax:.....

Address of manufacture:.....

No.	Names of animal and aquaculture feeds	Trade name	Quality of products*	Utility	Form, Color	Number of base standards to be applied	Number of receipt of regulation conformity publication	Code of products
1								
2								
3								

1. For imported animal and aquaculture feeds

No.	Names of animal and aquaculture feeds	Quality of products*	Utility	Form, Color	Firms, countries of manufacture	Code of products
1						
2						
3						

2. Time for product circulation is five year, from date of signing.

Request (2) to fully implement the current law related to animal and
aquaculture feed management.

Recipients:

- As stated in the Article 3
-
- Filing in the office

**LEADER OF COMPETENT
AUTHORITY**

- 1) Name of the competent authority.
- 2) Name of units, organizations, individuals.
- 3) (*) Quality criteria, product safety criteria.

(Name of organizations,
individuals):.....
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness

Datemonth.....year

**APPLICATION FOR ADJUSTMENT OF INFORMATION OF ANIMAL
AND AQUACULTURE FEEDS**

To: (1)

Name of organizations, individuals:

Address:

Code of enterprises:
.....

Telephone:; Fax:; Email:

Requests for being adjusted information over following animal and aquaculture feed
products to be permitted to circulate in Vietnam:

1. For locally produced animal and aquaculture feeds

No.	Trade names of feeds	Number of base standards to be applied	Code of products	Accredited information of products	Information requesting for being adjusted
1					
2					

2. For imported animal and aquaculture feeds

No.	Names of animal and aquaculture feeds	Firms, countries of manufacture	Code of products	Certified information of products	Information requesting for being adjusted
1					
2					

We commit to fully implement the provisions of the current law related to animal and aquaculture feeds.

Representative of units, organizations, individuals

(Signature and stamp)

(*) Number of import registration

(1) Name of the competent authority

.....(1)
No.:...../.....

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Regarding on confirmation for adjustment
of information of animal and aquaculture
feeds

Hanoi, datemonth.....year 20.....

To: (2)

Pursuant to the Decree No./2017/ND-CP dated2017 of Government Office on animal and aquaculture feed management, and the dossier for adjustment of information for animal and aquaculture feeds approved to be circulated in Vietnam from(2),

..... (1) has opinions as below:

1. Hereby certifies information adjustment for animal and aquaculture feed which was approved for circulation in Vietnam as stated in the Document No.....dated... month...year... of the Ministry of Agriculture and Rural Development, as below:

Names of animal/ aquaculture feeds	Number of base standards to be applied	Code of products	Adjusted Information	
			Certified Information of products	Information requesting for being adjusted

2. Request (2) to fully implement the current law related to animal and aquaculture feed management.

Recipients:

- As stated above
-
- Filing in the office

LEADER OF COMPETENT
AUTHORITY

- 1) Name of the competent authority.
- 2) Name of units, organizations, individuals.

(Name of organizations,
individuals):.....
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Datemonth.....year

**APPLICATION FOR IMPORT OF ANIMAL AND AQUACULTURE
FEEDS FOR DISPLAY IN THE TRADE FAIRS AND EXHIBITIONS**

To: (1)

Name of organizations, individuals:

Address:

Telephone:; Fax:; Email:

1. Requests for import of the following animal and aquaculture feeds for display at trade fairs and exhibitions:

No.	Names of animal feeds	Volume	Nature, utility	Form, color	Packing	Firms, countries of manufacture
1						
2						
3						
...						

2. Estimated time of import:

.....

3. Entry port:.....

4. Time and venue of trade fairs, exhibitions:.....

5. Options of sample treatment after trade fairs, exhibitions:.....

Enterprise commits to fully implement the provisions of the current law related to animal and aquaculture feeds.

Representative of units, organizations, individuals

(Signature and stamp)

(1) Name of the competent authority

(Name of organizations,
individuals):.....
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Datemonth.....year

**APPLICATION FOR IMPORT OF ANIMAL AND AQUACULTURE
FEEDS FOR RESEARCH TESTING IN LABORATORIES**

To: (1)

Name of organizations, individuals:

Address:

Telephone:; Fax:; Email:

1. Requests for import of the following animal and aquaculture feeds for research testing in the laboratories:

No.	Names of animal feeds	Volume*	Nature, utility	Form, color	Packing	Firms, countries of manufacture
1						
2						
3						
...						

(*) Not over two kilograms for each product of animal and aquaculture feeds for testing in the laboratories. For specific research, imported volume needs to be in consistent with research content.

2. Estimated time of import:
.....
3. Entry port:.....
4. Clearly state purpose of research/analysis:.....
5. Options of sample treatment after trade fairs,
exhibitions:.....

We commit to fully implement the provisions of the current law related to animal and aquaculture feeds.

Representative of units, organizations, individuals

(Signature and stamp)

(1) Name of the competent authority

.....(1)
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Regarding on confirmation for animal and
aquaculture feeds to be imported for trade
fairs, exhibitions and testing in laboratories

Hanoi, datemonth.....year 20....

To: (2)

..... (1) received the Correspondence No.....dated ...month...year.... from organizations, individuals requesting for confirmation for animal and aquaculture feeds to meet all requirements to be allowed to import for display in the trade fairs and exhibitions, or for research/testing in the laboratories. After reviewing dossier, (1) has opinions as below:

1. Hereby agreed to allow organizations, individuals to import animal and aquaculture feeds for display in the trade fairs and exhibitions, or for research/testing in the laboratories during the period

No.	Names of animal and aquaculture feeds	Volume	Nature, utility	Firms, Country of manufacture
1				
2				
3				
...				

2. All aforementioned animal and aquaculture feeds are allowed to be used only for display in the trade fairs and exhibitions, or for research/testing in the laboratories, not for other purposes.

Samples after display at trade fairs and exhibitions, testing in the laboratories should be treated according to the legal regulations.

Recipients:

- As stated above
-
- Filing in the office

LEADER OF COMPETENT
AUTHORITY

- 1) Name of the competent authority.
- 2) Name of importing units, organizations, individuals.

(Name of organizations,
individuals):.....
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Datemonth.....year

**APPLICATION FOR IMPORT OF ANIMAL AND AQUACULTURE FEEDS FOR
PRODUCTION, PROCESSING TO RE-EXPORT**

To: (1)

Name of organizations, individuals:

Address:

Telephone:; Fax:; Email:

1. Requests for import of the following animal and aquaculture feed products for
production, processing to re-export:

No.	Names of animal feeds	Volume*	Nature, utility	Form, color	Firms, countries of manufacture
1					
2					
3					
...					

2. Estimated time of import:
3. Entry port:.....
4. Estimated time of export:.....
5. Export port:.....
6. Importing country:.....

Enterprise commits to fully implement the provisions of the current law related to animal
and aquaculture feeds.

Representative of units, organizations, individuals

(Signature and stamp)

(1) Name of the competent authority

(Name of organizations,
individuals):.....
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Datemonth.....year 20....

**APPLICATION FOR REGISTRATION FOR QUALITY INSPECTION OF
ANIMAL AND AQUACULTURE FEEDS**

To: (1)

1. Name of organizations, individuals:.....
2. Address:
- Telephone:; Fax:; Email:
3. Decision appointing certifying organizations for quality conformity in animal and aquaculture feed sector, number.....dated.....month....year....issued by (name of the competent authority).
4. Form of appointing proposal:
Appointed for first time ☐ Re-appointed ☐
5. Attached dossiers includes:
-
-
6. After researching all regulations stipulated in the Decree No. .../2017/ND-CP dated ...month....year 2017 of the Government on animal and aquaculture feed management.

Requests the Directorate of Fisheries/Department of Livestock Production to consider to appoint (*the name of the organization*) to involve in quality inspection for imported, exported animal and aquaculture feeds.

Representative of organizations

(*Signature and stamp*)

(1) Name of the competent authority

.....(1)
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Hanoi, datemonth.....year 20....

DECISION

**On appointment of certifying organizations for quality conformity of
imported/exported animal and aquaculture feeds**

..... (2)

Pursuant to the (3);

Pursuant to the Decree No./2017/ND-CP dated2017 of Government Office on
animal and aquaculture feed management;

Pursuant to demands and capacity of(appointed organizations) in quality inspection,
quality certification for imported, exported animal and aquaculture feeds;

Pursuant to the proposal.....,

DECIDES

Article 1. Appointed(name and address of appointed organization) as certifying
organization for quality conformity of imported, exported animal and aquaculture feeds.

Article 2. The valid time for this decision is three years.

Article 3. (name of the appointed organization) shall be responsible to implement
quality inspection for imported, exported animal and aquaculture feeds in accordance with
current regulations.

Article 4. Head of the Office..... (1), (registering unit), heads of relevant
departments/offices shall be responsible to implement this decision./.

Recipients:

**LEADER OF COMPETENT
AUTHORITY**

- As stated in the Article 4

-

- Filing in the office

1) Name of the competent authority.

2) Leader of the competent authority.

3) Document stipulating functions, tasks and responsibilities of the competent authority.

(Name of organizations,
individuals):.....
No.:...../.....

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Datemonth.....year

**REPORT OF QUALITY INSPECTION AND CERTIFICATION FOR IMPORTED,
EXPORTED ANIMAL AND AQUACULTURE FEEDS**

To: (1)

1. Name of organizations, individuals:.....

2. Address:

Telephone:; Fax:; Email:

Reports results of quality inspection and certification for animal and aquaculture feeds in the period from to..... as below:

- Number of enterprises inspected:
- Number of consignments, volume of inspected products:.....
- List of violated consignments, if any (name, volume, value, origin, importing company, type of violation.
- Violations during quality inspection and certification for imported, exported animal and aquaculture feeds of the appointed certifying organization found by inspection delegations.
- Recommendations of certifying organization on quality inspection, and certification for imported, exported animal and aquaculture feeds.

Representative of organizations

(Signature and stamp)

(1) Name of the competent authority

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Registration for Quality Inspection of Feeds

No:
 (for registering organizations, individuals)

No:
 (for inspection organization)

To:

1. Seller: (firm, country)	
2. Address, Phone, Fax:	
3. Port of departure:	
4. Buyer:	
5. Address, Phone, Fax:	
6. Port of Destination:	
7. Estimated import date:	
<i>DESCRIPTION OF GOODS</i>	
8. Name of goods:	
9. Quantity, Volume	
10. Registration number:	
11. Manufacturer (firm, country):	
12. Location of storage:	
13. Date for sampling registration:	
14. Location for sampling:	
15. Contact person	
16. Contract No..... dated.....	
17. Invoice No..... dated.....	
18. Packing list number..... dated.....	
FOR INSPECTING ORGANIZATION	
19. Analytical parameters required:	
20. Date of testing:	
21. Inspection implementing body:	
<i>For imported goods, this registration is used for customs clearance. Consigner is required to submit all related documents of the imported goods to the inspection body.</i>	

Date:.....
 Representative of organizations, individuals
 (Sign, stamp)

Date:.....
 Representative of inspecting organization
 (Sign, stamp)

(Name of Unit):.....

SOCIALIST REPUBLIC OF VIETNAM

No.:.....

Independence - Freedom - Happiness

....., datemonth.....year.....

**REPORT ON CONSUMPTION OF IMPORTED FEED
CONSIGNMENTS CONTAINING ANTIBIOTICS**

To: (1)

Name of organizations, individuals:.....

Address:

Telephone:; Fax:; Email:

Our company hereby reports consumption status of imported feed consignments containing antibiotics as below:

- Name of feeds containing antibiotics:.....
- Name, volume of antibiotics in the product:.....
- Product registered code for import:.....
- Firm, country of origin:.....
- Volume of consignment (kg):.....
- Code of registration dossier for quality inspection:.....
- Quality Certificate No.....dated.....issued by.....(2).

1. Consumption status of feed consignment:

No.	Internal use		For external sale		Volume in stock (kg) (up to reporting date)
	For animal feed production	Used in the company's farms	Name, address of customers	Volume (kg)	
1					
2					
3					

2. Consumption plan for aforementioned stock volume and new feed imported consignments .

....., date:.....month....year

Director

(Signature and stamp)

(1) Name of the competent authority.

(2) Name of the organization issuing quality certificate.

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Department issues the quality certificate:.....

Address:.....

Telephone:.....Fax:.....

QUALITY CERTIFICATE

No.:

Seller: Address, Phone, Fax:		Port of departure:
Buyer: Address: Phone, Fax:		Port of Destination:
Name of goods:	Volume:	Description of goods:
Based on inspection result No....., the quality inspection registration application No..... and the quality analysis result (Quality certificate issuing organization) Hereby certifies the goods meet the quality requirements		

Date:.....

Representative of inspection body
(Sign and stamp)

(Name of Unit):.....

SOCIALIST REPUBLIC OF VIETNAM

No.:.....

Independence - Freedom - Happiness

....., datemonth.....year.....

**APPLICATION FOR TIME-LIMITED REDUCED/EXEMPT QUALITY INSPECTION
FOR IMPORTED ANIMAL AND AQUACULTURE FEEDS**

To: (1)

Name of organizations, individuals:.....

Address:

Telephone:; Fax:; Email:

Requests for reduced/exempt quality inspection for imported animal and aquaculture feeds as below:

No.	Name of products	Accredited Code of feed products allowed to be circulated in Vietnam*	Quality inspection registration application No.	Firm, country of manufacturer	Import time (date, month, year)	Quality Certificate No.
I	A					
	1 st time					
	2 nd time					
	3 rd time					
	4 th time					
	5 th time					
II	B					
	...					

**Import registration code*

We commit to fully implement the provisions of current law related to imports of animal and aquaculture feeds.

Representative of units, organizations, individuals*(Signature and stamp)*

(1) Name of the competent authority

.....(1)
No.:...../.....

SOCIALIST REPUBLIC OF VIETNAM
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Regarding application of time-limited
reduced/exempt quality inspection

Hanoi, datemonth.....year 20.....

To:..... (2)

..... (1) received the Correspondence No.....dated ...month...year.... from organizations, individuals requesting for exempt/time-limited reduced quality inspection with time period for imported animal and aquaculture feeds. After reviewing dossier,..... (1) has opinions as below:

1. Animal feed, aquaculture feed products, which are allowed to be circulated in Vietnam, have names below:

No.	Names of animal and aquaculture feeds	Accredited Code of feed products allowed to be circulated in Vietnam	Firms, Country of manufacture	Name of importing organization/unit

Are allowed to be applied for exempt/time-limited reduced quality inspection in accordance with regulations stipulated in the Decree No...../2017/ND-CP dated....month....year....of the Government of Vietnam from the date ofto the date of ...

2. Requests organizations, individuals to properly implement all current regulations on animal and aquaculture feed management.

Recipients:

LEADER OF COMPETENT AUTHORITY

- As stated above
- Appointed inspection organization
- Filing in the office

- 1) Name of the competent authority.
- 2) Name of units, organizations, individuals requesting for exempt/time-limited reduced quality inspection.